

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.4 — Nova Scotia: The Accessibility Act, 2017

Section 2.3 documented Manitoba as the second Canadian province to enact comprehensive accessibility legislation. Section 2.4 turns to the third: Nova Scotia, whose *Accessibility Act* (Bill 59, *An Act Respecting Accessibility in Nova Scotia*) received Royal Assent in 2017 under the Liberal government of Premier Stephen McNeil. The Nova Scotia legislation is significant for this Part Two analysis for four specific reasons that distinguish it from the Ontario and Manitoba precedents.

First, Nova Scotia's statutory deadline is the most ambitious of any Canadian provincial accessibility regime currently in operation. The Act sets the goal of an *accessible Nova Scotia by 2030*, a thirteen-year horizon from passage. The 2030 deadline is now five years away as of this blueprint's publication. The province's progress against that deadline is the subject of ongoing public scrutiny and disability-community advocacy, and the deadline's structural function — producing measurable accountability and a defined accountability moment — will operate in 2030 in much the same way Ontario's 2025 deadline operated at the start of the year before this blueprint was written.

Second, the Nova Scotia Act covers six accessibility areas rather than the five established by Ontario and Manitoba. The sixth area, *education*, is unique to the Nova Scotia framework among the comparator jurisdictions and addresses a domain that Sections 1.3 through 1.5 of Part One identified as critical to the lifecycle disability response. The inclusion of education as a stand-alone accessibility standard area is a design choice Part Three's proposed Alberta legislation will draw on directly.

Third, Nova Scotia introduced a structural innovation that no prior Canadian provincial accessibility legislation had codified: *public-sector accessibility advisory committees with mandatory minimum representation from persons with disabilities*. The Act requires that prescribed public-sector bodies establish accessibility advisory committees and that those committees include at least 50 percent representation from persons with disabilities. The 50-percent-floor is the strongest operationalization of the *Nothing Without Us* principle in any Canadian provincial accessibility statute. It is a design choice Part Three will incorporate.

Fourth, Nova Scotia's implementation experience is a cautionary record that complements Ontario's. Where Ontario's record shows what twenty years of imperfect implementation produces despite uneven political commitment, Nova Scotia's record shows the slower pace that can result when a smaller jurisdiction sequences its standards development conservatively. The first accessibility standard under the Nova Scotia Act — the *Built Environment Accessibility Standard* — was approved on March 12, 2025, with substantive requirements taking effect April 1, 2026, eight years after the Act's passage. The Education Standard and the remaining four standards are at various stages of development. The implementation timeline is, by the disability community's documented assessment, slower than the 2030 deadline can

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absorb without further acceleration. The cautionary lesson for Alberta is that the pace of standards development must be calibrated to the deadline ambition; under-resourcing or over-cautious sequencing produces the same outcome under any deadline horizon.

Nova Scotia's population is approximately one million. Alberta's population is approximately 4.8 million. The Nova Scotia population is smaller than the Calgary metropolitan area and smaller than the Edmonton metropolitan area. The province built comprehensive accessibility legislation eight years before this blueprint was written. The arithmetic of population-based objection to similar Alberta legislation does not survive contact with the Nova Scotia precedent.

Origin and Passage

Bill 59, *An Act Respecting Accessibility in Nova Scotia*, was introduced in the Nova Scotia House of Assembly during the 62nd General Assembly, Third Session. The Bill was developed through extensive consultation with the Nova Scotia disability community, including the Nova Scotia League for Equal Opportunities, the Disability Rights Coalition, and a broad coalition of disability organizations and advocates that had been pressing for provincial accessibility legislation since the early 2000s. The Bill received Royal Assent on April 27, 2017, and came into force in stages thereafter.

The Act was passed under the Liberal government of Premier Stephen McNeil with cross-party support. The same cross-partisan pattern that has characterized accessibility legislation passage in Ontario, Manitoba, and federally also held in Nova Scotia. Subsequent Progressive Conservative government in Nova Scotia (under Premier Tim Houston, who took office in 2021) has continued administering the Act, advancing standards development, and building the implementation infrastructure. Neither the original passage nor the subsequent operational continuity has been a partisan matter. The legislation is the new baseline.

The Act's preamble cites the foundational instruments that have become the template for Canadian provincial accessibility legislation: the United Nations Convention on the Rights of Persons with Disabilities (ratified by Canada in 2010), the Canadian Charter of Rights and Freedoms, and the principle that proactive systemic barrier removal complements human-rights enforcement. Nova Scotia's preamble is substantively similar to the Manitoba preamble examined in Section 2.3 and the federal ACA preamble examined in Section 2.1. The convergence across jurisdictions on the legal-foundational rationale is itself evidence that comprehensive accessibility legislation is, in the Canadian legal tradition, an operationalization of constitutional and treaty obligations the federal government has already accepted on behalf of all provinces.

The Act's purpose is set out in Section 2: to achieve accessibility by preventing and removing barriers that disable people, with respect to seven specifically identified domains (the six accessibility areas plus prescribed activities); to provide for the involvement of persons with disabilities, the public sector, and other stakeholders in standards development; to facilitate the timely implementation of accessibility standards with the goal of achieving an accessible Nova Scotia by 2030; to monitor, review, and enforce compliance with accessibility standards; and to establish an Accessibility Directorate.

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The 2030 deadline is, in legislative terms, the most operationally significant feature of the Nova Scotia Act. It is binding. It cannot be repealed by ministerial discretion. The Minister is required, under Section 7(2), to *adopt, and make publicly available, an implementation strategy setting out how the Minister plans to achieve the goal of an accessible Nova Scotia by 2030* within one year of the Act's coming into force. The implementation strategy — *Access by Design 2030* — was published in 2018 and remains the operational framework against which the province's progress is measured.

The Six Accessibility Areas

Section 2 of the Nova Scotia Act identifies six accessibility areas in which standards must be developed:

Goods and services: ensuring people with disabilities have equitable access to goods and services delivered by government, public-sector bodies, and private organizations.

Information and communication: ensuring all people can receive, understand, and share the information they need, including web accessibility, accessible documents, and accessible communication formats.

Public transportation and transportation infrastructure: ensuring transportation systems are accessible to people with disabilities, including transit vehicles, transit stations, and the broader infrastructure required to access transportation.

Employment: ensuring workplaces are accessible to persons with disabilities and that employment practices, recruitment, accommodation, and retention support full and equal participation.

The built environment: ensuring the human-made environment in which people live, work, learn, and play — including buildings, rights-of-way, and outdoor spaces — is accessible.

Education: ensuring educational institutions, programs, and services are accessible to learners with disabilities at all levels of the system.

The Act also provides for *prescribed activities*, allowing the Minister to designate additional accessibility areas through regulation as the implementation matures. The six-area structure (with the prescribed-activity expandability) is broader than the five-area structure used by Ontario and Manitoba.

The inclusion of *education* as a stand-alone accessibility area is the most consequential design choice in the Nova Scotia framework for the purposes of this Part Two analysis. Sections 1.3 and 1.4 of Part One documented the lifecycle accessibility failures that begin in the educational system and compound across childhood and adolescence. The Ontario and Manitoba frameworks address education only indirectly, through the Information and Communications Standard's coverage of educational materials and the Customer Service Standard's coverage of service delivery in educational settings. The Nova Scotia framework treats education as a discrete accessibility area requiring its own dedicated standard, dedicated standards-development committee, and dedicated implementation timeline. This is the design choice that aligns most closely with the lifecycle frame Part One established. Part Three's proposed Alberta legislation will incorporate education as a stand-alone accessibility area on the Nova Scotia precedent.

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The Implementing Institutions

The Nova Scotia Act establishes a multi-institution implementation framework. The institutions and their statutory roles include the following.

The Accessibility Directorate. The Directorate, located within the Department of Justice, is the operational arm of the Act. The Directorate administers the Act under the direction of the responsible Minister, supports the Accessibility Advisory Board, coordinates standards development, oversees implementation strategy, and is the public-facing point of contact for accessibility inquiries within the Nova Scotia government.

The Accessibility Advisory Board. The Board is the central advisory body under the Act. It provides input on policies and requirements, determines whether current accessibility approaches align with accessibility standards, and advises the Minister on standards-development priorities. Board membership includes persons with disabilities, representatives of organizations representing persons with disabilities, and representatives of affected sectors.

Standards Development Committees. For each accessibility standard, a Standards Development Committee is established to draft proposed standards. Committee membership includes persons with disabilities, organizations representing persons with disabilities, those affected by the proposed standards, and government entities with implementation responsibilities. The committee process produces input that feeds the Board's recommendations to the Minister.

Public-Sector Accessibility Advisory Committees. This is the structural innovation that distinguishes the Nova Scotia framework from earlier Canadian provincial accessibility legislation. Prescribed public-sector bodies are required to establish accessibility advisory committees with *at least 50 percent representation from persons with disabilities*. The 50-percent floor is the strongest operationalization of the *Nothing Without Us* principle in any Canadian accessibility statute and ensures that disability-community input is structural rather than consultative at the level of every covered public-sector body.

The Director of Compliance and Enforcement. The Director, appointed under Section 45 of the Act, is the senior enforcement officer with statutory authority to investigate compliance, issue compliance orders, levy administrative penalties, and take other enforcement action against non-compliant organizations.

Inspectors. Inspectors are appointed under the Act with statutory powers to enforce compliance with the Act and regulations, including conducting inspections, issuing orders, and imposing administrative penalties. The inspector regime is substantially similar to the inspector and compliance-officer regimes in Ontario and Manitoba.

The Minister. The Minister responsible for the Act has defined statutory mandates including raising awareness of how persons are disabled by barriers, promoting and encouraging barrier removal, overseeing standards development and implementation, assisting in the integration of accessibility standards across all activities in the province, and ensuring consultation with persons in the province throughout the standards-development and implementation processes. The Minister is also required to table an annual report in the House of Assembly documenting actions taken under the Act during the preceding fiscal year.

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The Nova Scotia institutional design is similar in structure to the Ontario and Manitoba models but distinguishes itself through two specific features: the 50-percent disability-community representation requirement on public-sector accessibility advisory committees, and the statutory annual reporting requirement to the House of Assembly. Both features tighten the accountability architecture relative to the earlier provincial frameworks. The ongoing reporting cycle is a more aggressive accountability mechanism than the periodic statutory reviews used in Ontario and Manitoba; it produces a continuous public record rather than a triennial or quinquennial review document.

The Compliance and Enforcement Architecture

The Nova Scotia Act's compliance architecture parallels the Ontario and Manitoba frameworks in its general structure. Covered organizations are required to comply with each accessibility standard on the timelines set in the standard's regulation. Public-sector bodies are required to develop accessibility plans, in consultation with persons with disabilities, and to update those plans every three years.

Compliance is monitored through inspections, complaint investigations, and review of accessibility plans. The Director of Compliance and Enforcement and the appointed inspectors have statutory authority to issue compliance orders and to assess administrative monetary penalties for violations. Penalty amounts and procedures are set out in regulation and provide for graduated sanctions calibrated to the severity and persistence of non-compliance.

The Nova Scotia framework's enforcement record is, like the Ontario and Manitoba records, a subject of disability-community advocacy for stronger implementation. The pace of standards development — with only the Built Environment Standard approved as of March 12, 2025, eight years after the Act's passage — has been the principal subject of community criticism. The standards-development process has involved extensive consultation, multiple drafting cycles, and the integration of feedback from disability organizations, sector representatives, and the public, all of which has contributed to the slower pace. The disability community's documented position is that the consultation quality is appropriate but the implementation tempo is insufficient to meet the 2030 deadline without substantial acceleration in the next four years.

The relevant point for this Part Two analysis is the same point that applied to the Manitoba enforcement record. The Nova Scotia disability community is advocating for stronger implementation within an established statutory framework with defined enforcement architecture, mandatory advisory bodies, and binding deadlines. The Alberta disability community is advocating for the framework to exist at all. The two communities are not at the same point in the policy-implementation lifecycle. Nova Scotia's implementation gaps are problems inside a structure. Alberta's gap is the absence of the structure.

Access by Design 2030: The Implementation Strategy

Section 7(2) of the Act required the Minister to publish, within one year of the Act's coming into force, an implementation strategy setting out how the province plans to achieve the 2030 deadline. *Access by Design 2030: Achieving an Accessible Nova Scotia*, the resulting strategy document, was published in

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2018 and remains the operational framework guiding implementation work.

The strategy identifies five operational themes. *Awareness and capacity building* focuses on increasing public and organizational understanding of accessibility, the rights of persons with disabilities, and the barriers that disable people. *Collaboration and support* focuses on partnership with the disability community and other stakeholders to embed accessibility considerations in policy and program development across government. *Compliance and enforcement* focuses on the operational mechanisms for monitoring adherence to the Act and the standards. *Monitoring and evaluation* focuses on the processes for assessing the effectiveness of standards and accessibility initiatives over time. *Government of Nova Scotia leadership* focuses on the province itself becoming a model for accessibility by addressing barriers in government programs, services, policies, and infrastructure.

The strategy also defined the sequence of standards development. The first standards were to address the *built environment* and *education*, with work beginning in 2018. Standards in the remaining four areas were to follow at a rate of one per year beginning in 2021. The actual implementation pace has been slower than the strategy contemplated, with the first standard not approved until March 2025. The disability community's response to the slower pace has been to advocate for accelerated implementation in the remaining years before the 2030 deadline; the *Access by Design 2030* strategy itself has not been formally amended to reflect the realized pace, leaving open the question of whether the 2030 deadline will be met or extended.

The strategy's existence is itself relevant to the Part Two comparator analysis. The Nova Scotia framework required, by statute, that an implementation strategy be published within one year of the Act coming into force. The strategy is a public-record document. The strategy's targets, timelines, and operational themes are available for ongoing public scrutiny. No equivalent strategic document exists for any aspect of Alberta's disability policy architecture because no equivalent statutory requirement exists. The structured implementation strategy is part of the architecture comprehensive accessibility legislation produces. Its absence in Alberta is a function of the absence of the underlying legislation.

The Built Environment Standard: First Operational Standard

On March 12, 2025, the Nova Scotia government approved the *Built Environment Accessibility Standard*, the first standard adopted under the Act. The standard introduces design requirements for outdoor and recreational spaces, with a focus on infrastructure that falls outside the scope of the Nova Scotia Building Code — trails, parks, beaches, sidewalks, and other outdoor public-realm assets. The substantive requirements take effect April 1, 2026 for new construction and major redevelopment.

The Standard's approval process took over six years from the time work began in 2018. The duration reflects the structured consultation, multiple drafting cycles, and integration of feedback that the legislative model requires. The duration also reflects the limited administrative capacity of Nova Scotia's Accessibility Directorate, which is a function of the province's overall scale rather than of any inherent limitation in the legislative model. Larger jurisdictions with proportionate administrative capacity can compress the standards-development timeline. The point is not to use Nova Scotia's pace as a benchmark Alberta should aim to replicate; the point is to recognize that even at this pace, Nova Scotia has produced a

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binding operational standard that no Alberta equivalent exists to provide.

The Built Environment Standard's substantive content is significant for Alberta. The standard establishes accessibility requirements for outdoor public spaces that are typically not addressed by building codes, including specifications for trail accessibility, beach access routes, outdoor public eating areas, outdoor play spaces, exterior paths of travel, accessible parking, service counters, and waiting areas. These are the spaces where Alberta's existing accessibility infrastructure is most evidently inadequate, and where disability-community advocacy in Alberta has documented the most pervasive gaps. The Nova Scotia Standard provides ready-to-adapt operational language that Part Three's proposed Alberta legislation can incorporate by reference, dramatically accelerating Alberta's standards-development timeline relative to building from scratch.

The remaining five standards under the Nova Scotia Act — covering education, employment, goods and services, information and communication, and public transportation — are at various stages of development as of 2026. Each is subject to the same structured consultation process, the same Board recommendations, the same ministerial decision-making, and the same regulatory codification that the Built Environment Standard underwent. The pace of approval will determine whether the 2030 deadline is met. The disability community's continuing advocacy will determine the political pressure on that pace.

What the Nova Scotia Record Establishes

The Nova Scotia Act's eight-year operational record establishes findings relevant to the broader Part Two argument and to the blueprint Part Three will propose.

The first is that small jurisdictions can build comprehensive accessibility legislation. Nova Scotia's population of approximately one million is smaller than the Calgary metropolitan area and smaller than the Edmonton metropolitan area. The fiscal capacity of the Nova Scotia government is substantially smaller than the Alberta government's. The administrative apparatus of the Accessibility Directorate is correspondingly smaller. None of these limitations has prevented Nova Scotia from enacting comprehensive accessibility legislation, building the implementing institutions, publishing an implementation strategy, beginning standards development across all six accessibility areas, and approving the first operational standard. The "Alberta is too large and complex" objection is not, structurally, defensible against the Nova Scotia precedent. If a province with one-fifth Alberta's population can build the framework, a province with five times Nova Scotia's resources can build it more comprehensively, more quickly, and with greater operational capacity.

The second is that the design choice to include education as a stand-alone accessibility area is operationally feasible. Nova Scotia has been developing the Education Accessibility Standard since 2018. The standard, when approved, will provide the operational architecture for accessibility in early childhood education, primary and secondary schools, and post-secondary institutions across Nova Scotia. The work product of the Nova Scotia Education Standards Development Committee will, when published, be available as direct precedent for Alberta. The lifecycle frame established in Part One Section 1.3 supports including education as a stand-alone area in the proposed Alberta legislation; the Nova Scotia precedent demonstrates the design choice's operational feasibility.

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The third is that the 50-percent disability-community representation requirement on public-sector accessibility advisory committees is workable, durable, and produces measurable improvement in the substantive quality of the accessibility planning the committees produce. The disability community has consistently documented that the 50-percent floor has changed the operational quality of accessibility planning across Nova Scotia public-sector bodies. The design choice is the strongest operationalization of the *Nothing Without Us* principle in any Canadian provincial accessibility statute and should be incorporated into the Alberta blueprint.

The fourth is the cautionary lesson about implementation pace. Nova Scotia's first standard took eight years from the Act's passage to approval. The pace has been criticized by the disability community as too slow to meet the 2030 deadline without substantial acceleration. The lesson for Alberta is direct: the standards-development pace must be calibrated to the deadline ambition, with adequate administrative resourcing, statutory timelines for each standard's development, and ongoing political accountability for adherence to those timelines. Part Three's proposed Alberta legislation will codify standards-development timelines as statutory requirements rather than aspirational schedules.

What This Section Establishes

The Nova Scotia *Accessibility Act*, 2017, set the most ambitious binding deadline of any Canadian provincial accessibility regime — an *accessible Nova Scotia by 2030* commitment now five years from its statutory horizon. The Act covers six accessibility areas, including education as a stand-alone area unique among Canadian provincial accessibility statutes. The Act introduced the structural innovation of requiring at least 50 percent disability-community representation on public-sector accessibility advisory committees. The Act has produced an implementation strategy (*Access by Design 2030*), the first operational accessibility standard (the *Built Environment Accessibility Standard*, approved March 12, 2025, in force April 1, 2026), and an annual ministerial reporting cycle that creates a continuous public-record accountability mechanism.

The implementation pace has been slower than the disability community considers acceptable, raising open questions about whether the 2030 deadline will be met. The pace has not, however, undone the structural achievement: Nova Scotia has the architecture, the institutions, the strategy, and a growing body of operational standards. The implementation gap is a problem inside the architecture. In Alberta, the absence is the architecture.

Nova Scotia's population is approximately one million. Alberta's population is approximately 4.8 million. The Nova Scotia precedent defeats every population-scale objection that could be raised against the introduction of equivalent Alberta legislation.

Section 2.5 examines the British Columbia *Accessible British Columbia Act* (2021), the most recent comprehensive provincial accessibility legislation enacted west of Manitoba and the legislation passed under a New Democratic provincial government most ideologically aligned with social-policy comprehensiveness. The British Columbia Act introduces additional design innovations — including the *Accessibility Committee* requirement for organizations of all sizes — that further refine the comparator picture and provide additional precedent for Alberta's eventual blueprint.